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TAB 8



Board of Education Report

File #: Rep-133-23/24, **Version:** 1

Adoption of Resolution to Authorize Los Angeles Unified School District Representatives Performance for State Allocation Board (SAB) Administered Programs

December 12, 2023

Facilities Services Division

Action Proposed:

Adopt the attached Board of Education (Board) Resolution (Exhibit A) to authorize Los Angeles Unified School District (District) personnel to perform all necessary functions related to State Allocation Board administered programs, including the administration of necessary grant-related activities, and the execution of all instruments necessary, as legally permissible, to implement the requirements of the grant awards.

Background:

The State Allocation Board (SAB) is responsible for determining the allocation of state resources used for the new construction and modernization of public-school facilities. The voter-approved general obligation bond funds and other designated state funds that make up the state resources managed by the SAB, are allocated into SAB-Administered Programs to which school districts can apply for funding. Facilities Services Division has applied for grants through the various SAB-Administered Programs and has been awarded approximately \$5.45 billion so far, thus allowing the District to build new schools, modernize existing campuses, and provide learning environments that will help students achieve educational goals.

The SAB is supported by the Office of Public School Construction (OPSC) who is responsible for the administration of state funding for eligible facility projects and who operates under the Department of General Services (DGS). It is OPSC's responsibility to verify that all school districts who apply for state funding meet the specific criteria of the funding programs, facilitate the application process, and ensure that all awarded funds are allocated per state law and the regulations implemented and the actions taken by the SAB.

To ensure school districts are aware of the commitments necessitated by receiving funds from an SAB-Administered Program, OPSC is now requiring the adoption of a resolution by a school district's governing body that authorizes named District personnel to sign documents and agreements and submit documents via OPSC Online that are associated with SAB-Administered Programs. This requirement now requires the updating and readopting of the resolution every time there is a change in authorized named personnel.

Expected Outcomes:

Adopt the Resolution to authorize staff to perform all necessary functions related to SAB-Administered Programs, including the execution of all necessary instruments for the purposes of the administration and compliance of the grant awards.

Board Options and Consequences:

Approval of this action will allow staff to proceed with the necessary administrative and project activities related to SAB-Administered Programs.

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If the proposed action is not approved, staff will not be able to proceed with applying for funds through SAB-Administered Programs, forgoing any available grant funds through these programs, and would also not be able to submit documentation needed to remain compliant with existing grant and reporting requirements.

Policy Implications:

Staff's proposal advances Pillar 4 Operational Effectiveness of the 2022-26 Strategic Plan and fulfills OPSC's requirements for SAB-Administered Programs.

Budget Impact:

No budget impact.

Student Impact:

Approval of this action allows the District to apply for and be in compliance with grants that are awarded to create and improve District facilities, thus improving students' access to a safe and healthy learning environment.

Equity Impact:

The grants awarded through SAB-Administered Programs support the District's Bond Program which is focused on improving equity between newer and older schools so that all students have an equal opportunity for success.

Issues and Analysis:

No issues.

Attachments:

Exhibit A - Resolution of the Board of Education of the City of Los Angeles Authorizing Los Angeles Unified School District Representatives for State Allocation Board Administered Programs

Informatives:

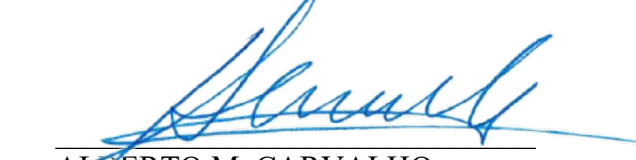
None.

Submitted:

11/12/23

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RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:

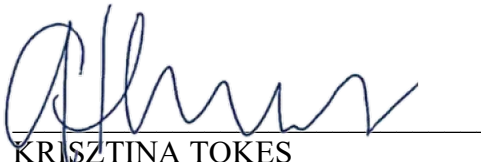

PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED AND PRESENTED BY:


KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
Exhibit A

**RESOLUTION OF THE BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
AUTHORIZING LOS ANGELES UNIFIED SCHOOL DISTRICT REPRESENTATIVES
FOR STATE ALLOCATION BOARD (SAB) ADMINISTERED PROGRAMS**

WHEREAS, Education Code established multiple programs to be administered by the Department of General Services (DGS) as staff to the State Allocation Board (SAB); and

WHEREAS, the Los Angeles Unified School District (LAUSD or District) intends to file applications for eligibility determination, file applications for funding, and/or certify information under one or more SAB-Administered Program(s); and

WHEREAS, the SAB and DGS require a school district's Board of Education to authorize specific individuals to sign and submit information on behalf of a school district; and

WHEREAS, the LAUSD understands that the signing and submittal of forms on behalf of the District commits the District to comply with program requirements.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF EDUCATION OF THE CITY OF LOS ANGELES AS FOLLOWS:

- A. That the LAUSD Board of Education authorizes the individuals identified below to sign all documents and papers physically and electronically, as well as submit documents via OPSC Online that are associated with SAB-Administered Programs. These documents include but are not limited to applications for funding, eligibility determination forms, expenditure reports, grant agreements, and any other instrument necessary for application and compliance with SAB-Administered Programs and regulations:
 - 1. Krisztina Tokes, Chief Facilities Executive
 - 2. Alix O'Brien, Deputy Chief Facilities Executive
 - 3. (VACANT), Director of Facilities Program Support Services
 - 4. Chris Alejo, Deputy Director of Facilities Program Support Services
 - 5. Karen Lee, Interim Director of Facilities Legislation, Grants and Funding
 - 6. (VACANT), Deputy Director of Facilities Legislation, Grants and Funding

LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
Exhibit A

Passed, Approved and Adopted this 12th Day of December 2023:

<u>Dr. George McKenna</u> (Name and Title)	<u>Board Member</u>	<u>Jackie Goldberg</u> (Name and Title)	<u>Board President</u>
<u>Dr. Rocío Rivas</u> (Name and Title)	<u>Board Member</u>	<u>Kelly Gonez</u> (Name and Title)	<u>Board Member</u>
<u>Scott M. Schmerelson</u> (Name and Title)	<u>Board Vice President</u>	<u>Tanya Ortiz Franklin</u> (Name and Title)	<u>Board Member</u>
<u>Nick Melvoin</u> (Name and Title)	<u>Board Member</u>		

CERTIFICATION

I do hereby certify that the foregoing resolution was duly approved and adopted by the Board of Education of the City of Los Angeles at a meeting thereof held on the 12th day of December 2023 by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

Michael McLean
Executive Officer of the Board of Education

Date